

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Eldon Gallardo and Michael Graham,	:	Index Number:
Plaintiffs,	:	Date Purchased:
		Date Filed:
-against-	:	SUMMONS
City of New York, New York City Police Department,	:	
Police Officer Carlos Sandoval, Shield 22632 of PSA 8	:	
and New York City Police Officers John Doe,	:	Plaintiff Gallardo's
	:	residence is:
	:	1810 Watson Avenue
Defendants	:	Bronx, NY 10472
-----X		

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

The trial is be held in Bronx County.

Dated: February 8, 2024
New York, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Carlos Sandoval, Shield 22632 of PSA 8

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X		
Eldon Gallardo and Michael Graham,	:	
	:	
Plaintiffs,	:	
	:	VERIFIED COMPLAINT
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Carlos Sandoval, Shield 22632 of PSA 8	:	
and New York City Police Officers John Doe,	:	
	:	
Defendants.	:	
-----X		

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Eldon Gallardo, (hereinafter referred to as “GALLARDO”) resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Michael Graham, (hereinafter referred to as “GRAHAM”) resides in Bronx County, State of New York.
3. That at all times hereinafter mentioned, Police Officer Carlos Sandoval, Shield 22632 of PSA 8, (hereinafter referred to as “SANDOVAL”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers involved in the arrest of Plaintiffs, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or about February 1, 2023 notice required by Municipal Law 50-E was given to City of New York, by personal service as to both Plaintiffs. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

8. On or about April 24, 2023 a hearing required by Municipal Law 50-H was conducted for Plaintiffs. At said hearing all Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

9. That on or about January 10, 2023 at approximately 3:00 PM in the vicinity of 2289 7th Avenue, Bronx, NY, Plaintiffs were traveling in a car that was stopped for absolutely no lawful reason by SANDOVAL and DOES.

10. That after the car was stopped Plaintiffs were ordered to exit the car for absolutely no lawful reason.

11. That after Plaintiffs were ordered to exit the car, it was searched without any lawful authority to so.

12. That at no time had Plaintiffs engaged any unlawful or illegal activity.

13. That at no time did any Plaintiffs possess or exercise custody and control over stolen property.
14. That despite the above, Plaintiffs were each handcuffed and arrested by SANDOVAL and DOES.
15. That after Plaintiffs were arrested they were each taken to the PSA 8 precinct.
16. That while at the PSA 8 of the Plaintiffs were subjected to a search and that nothing of an illegal or unlawful nature was recovered.
17. That while at the PSA 8 precinct, Plaintiffs were placed into a cell with numerous other males.
18. That after several hours, Plaintiffs were each released and issued a desk appearance ticket which required them to appear in Bronx County Criminal Court on January 30, 2023.
19. That on January 30, 2023, Plaintiff appeared in Bronx County Criminal Court located at 215 East 161 Street, Bronx NY.
20. That on or about January 17, 2023 the Office of the Bronx District Attorney declined to prosecute the arrests of each Plaintiff.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

21. Plaintiff GALLARDO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 20 as if more fully stated herein at length.
22. That Defendants acted with actual malice toward Plaintiff GALLARDO and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

23. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

24. That as a result of the actions by Defendants, Plaintiff GALLARDO was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

25. That as a result of the Defendants' actions, Plaintiff GALLARDO has been unable to sleep.

26. That as a result of the Defendants actions, Plaintiff GALLARDO was forced to miss multiple days of work.

27. That as a result of the Defendants' actions Plaintiff GALLARDO sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

28. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.

29. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff GALLARDO as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

30. Defendants having no lawful authority to arrest Plaintiff GALLARDO, did, nevertheless, unlawfully arrest Plaintiff GALLARDO with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus, Plaintiff GALLARDO is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

31. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 30 as if more fully stated herein at length.

32. Defendants conspired to violate Plaintiff GALLARDO's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff GALLARDO is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. Plaintiff GALLARDO was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff GALLARDO to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff GALLARDO by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of GALLARDO. Plaintiff GALLARDO is thus entitled to compensatory and exemplary damages.

35. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff GALLARDO by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. At all times pertinent hereto, SANDOVAL and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

38. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SANDOVAL and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

39. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff GALLARDO. Plaintiff GALLARDO is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

41. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff GALLARDO.

43. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff GALLARDO.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

44. Plaintiff GRAHAM repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43 as if more fully stated herein at length.

45. That Defendants acted with actual malice toward Plaintiff GRAHAM and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff GRAHAM.

46. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

47. That as a result of the actions by Defendants, Plaintiff GRAHAM was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

48. That as a result of the Defendants' actions, Plaintiff GRAHAM has been unable to sleep.

49. That as a result of the Defendants' actions, Plaintiff GRAHAM was forced to miss multiple days of work.

50. That as a result of the Defendants' actions Plaintiff GRAHAM sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

51. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 50, as if more fully stated herein at length.

52. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff GRAHAM as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

53. Defendants having no lawful authority to arrest Plaintiff GRAHAM, did, nevertheless, unlawfully arrest Plaintiff GRAHAM with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff GRAHAM is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

54. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 53, as if more fully stated herein at length.

55. Defendants conspired to violate Plaintiff GRAHAM's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State

Constitution, for which Defendants are individually liable. Thus, Plaintiff GRAHAM is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR AN ELEVENTH CAUSE OF ACTION AS DEFENDANTS

56. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 55, as if more fully stated herein at length.

57. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff GRAHAM to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution of Plaintiff GRAHAM by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff GRAHAM. Plaintiff GRAHAM is thus entitled to compensatory and exemplary damages.

58. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff GALLARDO by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

59. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff GALLARDO having known that there was exculpatory evidence showing that he did not commit a crime and despite such, he was arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

60. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 59, as if more fully stated herein at length.

61. At all times pertinent hereto, SANDOVAL and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

62. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SANDOVAL and DOES committed within the scope of his employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff GRAHAM. Plaintiff GRAHAM is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

65. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 64, as if more fully stated herein at length.

66. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff GRAHAM.

67. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff GRAHAM.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger
Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
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(646) 256-1007

ATTORNEY'S VERIFICATION

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the Plaintiff is because the Plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the Plaintiff, review of records and documents within affirmant's possession.

Affirmed: February 8, 2024

Jason Steinberger
Jason A. Steinberger